

The Indian Administrative Service (Cadre) Rules, 1954

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Union of India - Act

The Indian Administrative Service (Cadre) Rules, 1954

UNION OF INDIA

India

The Indian Administrative Service (Cadre) Rules, 1954

Rule THE-INDIAN-ADMINISTRATIVE-SERVICE-CADRE-RULES-1954 of 1954

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The Indian Administrative Service (Cadre) Rules, 1954

Published vide Notificatin No. 2121 54/54/-A.I.S.(2), dated 8th Septempber, 1954

In exercise of the powers conferred by sub-section 1 of Section 3 of the All India Services Act, 1951 (LXI of 1951), the Central Government, after consultation with the Governments of the States concerned, hereby makes the following rules namely:-

1.

Short title.

- These rules may be called the Indian Administrative Service (Cadre) Rules, 1954.

2.

Definitions.

- In these rules, unless the context otherwise requires -

(a)

'Cadre officer' means a member of the Indian Administrative Service;

(b)

['Cadre post' means any of the post specified under item I of each cadre in schedule to the Indian Administrative Service (Fixation of Cadre Strength) Regulations, 1955.]

[Substituted vide MHA Notification No.14/3/65-AIS(III)-A, dated 05.04.1966.]

(c)

'State' means [a State specified in the First Schedule to the constitution and includes a Union Territory.]

[Substituted with effect from 1-11-1956 vide MHA Notification No.13/21/56-AIS(III) dated 28.02.1958 and further amended with effect from 04.09.1958 vide MHA Notification No.5/25/58-AIS(II)-(I),dated 08.07.1959.]

(d)

['State Government concerned', in relation to a Joint cadre, means the Joint Cadre Authority.]

[Substituted vide D.P. Notification No.13/4/71-AIS(I),dated 11.01.1972.]

3.

Constitution of Cadres.

(1)

There shall be constituted for each State or group of States an Indian Administrative Service Cadre.

(2)

The Cadre so constituted for a State or a group of States is hereinafter referred to as a 'State Cadre' or, as the case may be, a 'Joint Cadre'.

4.

Strength of Cadres.

(1)

The strength and composition of each of the cadres constituted under rule 3 shall be determined by regulations made by the Central Government in consultation with the State Governments in this behalf and until such regulations are made, shall be as in force immediately before the commencement of these rules.

(2)

The Central Government shall, [ordinarily]

[Amended vide Notification no. 11033/7//94-AIS(II)-A, dated 10.03.1995.]

at the interval of every [five]

[Amended vide Notification no. 11033/7//94-AIS(II)-A, dated 10.03.1995.]

years, re-examine the strength and composition of each such cadre in consultation with the State Government or the State Governments concerned and may make such alterations therein as it deems fit:

Provided that nothing in this sub-rule shall be deemed to affect the power of the Central Government to alter the strength and composition of any cadre at any other time:

Provided further that State Government concerned may add for a period not exceeding [two year]

[Substituted vide DP&T Not. No. 11033/3/2000-AIS(II)-A dated the 14.07.2000]

[and with the approval of the Central Government for a further period not exceeding [three years,]

[Added vide M.H.A. Notification No. 6/8/64-AIS(I)-A, dated 30.11.1964.]

] to a State or Joint Cadre one or more posts carrying duties or responsibilities of a like nature to cadre posts.

5.

Allocation of members to various cadres.

(1)

The allocation of cadre officers to the various cadres shall be made by the Central Government in consultation with the State Government or the State Government concerned.

(2)

The Central Government may, with the concurrence of the State Government concerned transfer a cadre officer from one cadre to another cadre.

6.

[Deputation of cadre officers.

[Substituted vide M.H.A. Notification 6/69/63-AIS(I), dated 21.05.1969.]

(1)

A cadre officer may, with the concurrence of the State Governments concerned and the Central Government, be deputed for service under the Central Government or another State Government or under a company, association or body of individuals, whether incorporated or not, which is wholly or substantially owned or controlled by the Central Government or by another State Government.]

[Provided that in case of any disagreement, the matter shall be decided by the Central Government and the State Government or State Governments concerned shall give effect to the decision of the Central Government.]

[Inserted vide D.P. & A.R. Notification No. 11031/5/85-AIS(II), dated 14.05.1969.]

(2)

A cadre officer may also be deputed for service under -

(i)

a company, association or body of individuals, whether incorporated or not, which is wholly or substantially owned or controlled by a State Government, a Municipal Corporation or a Local Body, by the State Government on whose cadre he is borne; and

(ii)

an international organisation, an autonomous body not controlled by the Government, or a private body, by the Central Government in consultation with the State Government on whose cadre he is borne:

Provided that no cadre officer shall be deputed to any organisation or body of the type referred to in item (ii), except with his consent:

Provided further that no cadre officer shall be deputed under sub rule (1) or sub-rule (2) to a post [other than a post under the Central Government or under a company, association or body of individuals whether incorporated or not, which is wholly or substantially owned or controlled by the Central Government, carrying a prescribed pay which is less than, or a pay scale, the maximum of which is less than, the basic pay he would have drawn in the cadre post but for his deputation.]

[Substituted vide D.P. & T Notification No. 11030/100/87-AIS(II), dated 20.05.1988.]

7.

Postings.

- All appointments to cadre posts shall be made:-

(a)

in the case of a State Cadre, by the State Government; and

(b)

in the case of a Joint Cadre, by the State Government concerned.

(c)

(i)

The Central Government, in consultation with the State Government or State Governments concerned, may determine the tenure of all or any of the cadre posts specified for the State concerned in item 1 of the Schedule to the Indian Administrative Service (Fixation of Cadre Strength) Regulation, 1955.

(ii)

A cadre officer, appointed to any post for which the tenure has been so determined, shall hold the minimum tenure as prescribed except in the event of promotion, retirement, deputation outside the State or training exceeding two months.

(iii)

An officer may be transferred before the minimum prescribed tenure only on the recommendation of a Committee on Minimum Tenure as specified in the Schedule annexed to these rules

8.

[Cadre and ex-cadre posts to be filled by cadre officers.

[Substituted vide D.P. & T. Notification No. 14022/3/87-AIS(I), dated 11.11.1987]

(1)

Save as otherwise provided in these rules every cadre post shall be filled by a cadre officer.]

(2)

A Cadre officer shall not hold an ex-cadre post in excess of the number specified for the concerned State under item [5]

[At present, item 3]

of the Schedule to the Indian Administrative Service (Fixation of Cadre Strength) Regulations, 1955.

(3)

The State Government may, with the prior approval of the Central Government, appoint a cadre officer to hold an ex-cadre post in excess of the number specified for the concerned State in item [5]

[At present, item 3]

of the Schedule to the Indian Administrative Service (Fixation of Cadre Strength) Regulations, 1955 and, for so long as the approval of the Central Government remains in force, the said ex-cadre post shall be deemed to be an addition to the number specified in item [5]

[At present, item 3]

of the said Schedule.

9.

Temporary appointment of non-cadre officer to cadre posts.

- 9(1) A cadre post in a State shall not be filled by a person who is not a cadre officer except in the following case; namely:-

(a)

if there is no suitable cadre officer available for filling the vacancy:

Provided that when a suitable cadre officer becomes available, the person who is not a cadre officer, shall be replaced by the cadre officer;

Provided further that if it is proposed to continue the person who is not a cadre officer beyond a period of three months, the State Government shall obtain the prior approval of the Central Government for such continuance;

(b)

if the vacancy is not likely to last for more than three months:

Provided that if the vacancy is likely to exceed a period of three months, the State Government shall obtain the prior approval of the Central Government for continuing the person who is not a cadre officer beyond the period of three months.

(2)

[A cadre post shall not be filled by a person who is not a cadre officer except in accordance with the following principles, namely:]

[Substituted vide D.P. & T. Notification No. 14022/3/87-AIS(I), dated 11.11.1987]

(a)

if there is a Select List in force, the appointment or appointments shall be made in the order of the names of the officers in the Select List;

(b)

if it is proposed to depart from the order of names appearing in the Select List, the State Government shall forthwith make a proposal to that effect to Central Government together with the reasons therefor and the appointment shall be made only with the prior approval of the Central Government;

(c)

if a Select List is not in force and it is proposed to appoint a non-Select List officer, the State Government shall forthwith make a proposal to that effect to the Central Government together with the reasons therefor and the appointment shall be made only with the prior approval of the Central Government;

(3)

[Where a cadre post is likely to be filled by a person who is not a cadre officer for a period exceeding six months, the Central Government shall report the full facts to the Union Public Service Commission with the reasons for holding that no suitable officer is available for filling the post and may in the light of the advice given by the Union Public Service Commission give suitable direction to the State Government concerned;]

[Omitted and Re-numbered vide D.P. & T. Notification No. 14022/3/87 -AIS(I) dated 11.11.1987]

(4)

[Notwithstanding anything contained in these rules, in relation to the State of Nagaland and the Union Territories, a cadre post may be filled by a person who is a member of the Indian Frontier Administrative Service and was recruited to the Service prior to the 1st of January, 1968.]

[Added vide Deptt. of Personnel and AR Notification No. 11033/1/75 AIS(I), dated 13.6.1975 and renumbered vide D.P.

& T. Notification No. 14022/3/87(I) dated 11.11.1987.]

[Deleted.]

[Proviso deleted vide M.H.A. Notification No. 13/21/56 AIS(III), dated 28.02.1958.]

10.

[Report to the Central Government of vacant cadre posts.

[Substituted vide D.P. & A.R Notification No. 9/22/72-AIS(I), A , dated 23.05.1974.]

- Cadre posts shall not be kept vacant or held in abeyance for periods exceeding six months without the approval of the Central Government. For this purpose, the State Government shall make a report to the Central Government in respect of the following matters, namely:-]

(a)

the reasons for the proposal;

(b)

the period for which the State Government proposes to keep the post vacant or hold it in abeyance;

(c)

the provision, if any, made for the existing incumbent of the post; and

(d)

whether it is proposed to make any arrangements for the performance of the duties of the post to be kept vacant or held in abeyance, and if so, the particulars of such arrangements.

11.

[Holding of more than one post by a cadre officer.

[Substituted vide M.H.A. Notification No. 6/19/62-AIS(I), dated 26.12.1963.]

- (i) The State Government concerned in respect of the post borne on the State Cadre or the Joint Cadre, as the case may be, may, for the purpose of facilitating leave arrangements for a period not exceeding six months, direct that any two cadre posts or a cadre post and an equivalent post may be held simultaneously by one single cadre officer.]

(ii)

Where the State Government is of the opinion that it is necessary so to do, it may, with the prior approval of the Central Government, order that the posts directed by it be held simultaneously by one single cadre officer under sub-rule (i), may continue to be so held for a period beyond six months but, in any case, not beyond twelve months from the date with effect from which the posts were first directed to be so held under sub-rule(i).

11A.

[Authority to exercise certain powers in respect of members of the Service serving in connection with the affairs of the States constituting a Joint Cadre.

[Substituted vide D.P. & A.R. Notification No. 13/4/71-AIS(I), dated 11.01.1972.]

- The powers of the State Government under the second proviso to sub-rule (2) of rule 4, under clause (i) of sub-rule (2) of rule 6 and under Rules 7, 10 and 11, in relation to the members of the Service serving in connection with the affairs of any of the Constituent States shall be exercised by the Government of that State.]

11B.

[Authority to exercise certain powers in respect of members of the Service serving in connection with the affairs of the State constituting a Joint Cadre.

[Substituted vide D.P. & A.R. Notification No. 11/2/72 - AIS(I), dated 21.06.1974.]

- The powers of the State Government under rule 9, in relation to the members of the Service serving in connection with the affairs of any of the Constituent State shall be exercised by the Government of that State.]

12.

[Interpretation.

[Substituted vide D.P. & A.R. Notification No. 7/1/73 AIS(II), dated 06.01.1975.]

- If any question arises as to the interpretation of these rules, the Central Government shall decide the same.]

13.

Repeal and saving.

- All rules corresponding to these rules and in force immediately before the commencement of these rules are hereby repealed:

Provided that any order made or action taken under the rules so repealed shall be deemed to have been made or taken

under the corresponding provisions of these rules.

Schedule

[See rule 7(c)(iii)]

1. Composition of the State Committee to review minimum tenure. - (a) The Committee on Minimum Tenure constituted by the State Government shall consist of -

(i)

Chief Secretary

? Chairman;

(ii)

Senior most Additional Chief Secretary or Chairman, Board of Revenue or Financial Commissioner or an officer of equivalent rank and status

? Member;

(iii)

Principal Secretary or Secretary, Department of Personnel in the State Government

? Member Secretary.

(b)

In States where the Civil Services Board has been constituted, the State Government may entrust the work of the Committee to the Board.

2. Functions. - (a) The Committee on Minimum Tenure or Civil Services Board shall examine the cases of officers who are proposed to be transferred before completion of minimum tenure as determined for Item 1 of the Schedule to the Indian Administrative Service (Fixation of Cadre Strength) Regulations, 1955.

(b)

The Committee of Minimum Tenure or the Civil Services Board may consider for transfer before the tenure fixed under sub-clause (i) of clause (c) of rule 7 of the Indian Administrative Services (Cadre) Rules, 1954 based on the necessary circumstances regarding which the Committee or the Civil Services Board shall satisfy itself.

(c)

The Committee of Minimum Tenure or Civil Services Board may recommend the names of officers to the Competent Authority for transfer before completion of minimum tenure with reasons to be recorded in writing.

[3. Procedure. - (a) The Civil Services Board may obtain the information from the Administrative Department of the State concerned or any other relevant sources while considering the transfer of an officer before completion of specified tenure.

(b)

The Civil Services Board shall submit annual report on 1st January to the Central Government about the date of the Civil Services Board meetings in the prescribed Form annexed to the Schedule and also upload the same on the website of the concerned State Government or Union territory in public domain.

(2)

The Competent Authority may amend, modify or reject the recommendation of the Civil Services Board for the reasons to be recorded in writing.

Form

Sl.No.

Dates of the CSB meeting

Number of officers transferred

Whether provisions of rule 7 of IAS (Cadre)

Rules, 1954 have been complied with

Details of the period of tenure

Remarks, if any.]

[Substituted by Notification No. G.S.R. 426(E), dated 13.4.2016 (w.e.f. 8.9.1954).]

Government of India Decisions

Government of India's Decisions under Rule 2: - 1. The Government of India have held that a cadre post as defined in

the Rules means only the post specified under item 1 of the cadre strength of each State. A non-cadre post does not become a cadre post simply, on being declared equivalent to a cadre post. It would become a cadre post only after it has been included in and specified as such item 1 of the cadre strength of each State as shown in the Schedule to the I.A.S. (Fixation of Cadre Strength) Regulations, 1955.

[G.I., M.H.A. letter No. 14/51/65-AIS(III), dated 21-2-1966].

Government of India's Decisions under Rule 4: - 1.1. The criterion for inclusion of senior duty posts in the IAS cadre schedule is that the cadre should include all posts for which the State Government would require officers with wide administrative experience of the standard of the I.A.S. It should thus include:

(i)

all superior administrative posts of and above rank of District Officers e.g. Collectors, Commissioners, Members of Board of Revenue, Secretaries & Deputy Secretaries in Administrative Departments; and

(ii)

a proportion of miscellaneous posts including those of Heads of Departments. Strict uniformity in this matter is difficult.

1.2

The Central Government reserves the right to take a final decision regarding inclusion of a post in the cadre.

[G.I., MHA letter No. 5/61/57-AIS (II), dated 22-11-1957, No. 27/28/64-AIS (III), dated 24-3-1966 and 14/39/65-AIS (III).]

2. Posts included in the Cadre acquire the character of permanency.

[G.I., MHA letter No. 6/25/64-AIS(I), dated 1-6-1964].

3. Temporary additions to or subtractions from a cadre are not to be taken into account for cadre calculations or for calculating the number of selection grade posts.

[G.I. MHA letter No. 5/24/58-AIS-II dated 5.5.1958].

4.1

The second proviso requires that the posts added temporarily to the cadre should carry duties and responsibilities of a like nature of cadre posts. The exercise of this power by the State Government with reference to a post involves an objective assessment of the nature of the duties and responsibilities attached to that post in comparison to those attached to a cadre post. Thus posts cannot be added temporarily to the cadre unless such posts already exist in the cadre.

4.2

The scale of pay of the post, temporarily added to the cadre, should also be the same as that of the cadre post to which it corresponds. Thus, where the pay of the post of Secretary in the cadre is in the senior time-scale, it would not be in order, to add temporarily to the cadre post of Secretary in the super time-scale.

[G.I., MHA letter No. 6/9/63-AIS(I), dated 9-2-1965].

5.1

A doubt was raised whether ex-cadre posts equated to cadre posts under rule 9 of any Rules would be treated as automatic temporary additions to the cadre and would fall within the scope of the second proviso to rule 4(2) of the Cadre Rules.

5.2

Both these provisions are independent of each other and are not inter-connected. The second proviso to rule 4(2) of the Cadre Rules empowers the State Governments to make temporary additions to the cadre for the period not exceeding the limit indicated therein. Rule 9 of the Pay Rules, on the other hand, provides for regulation of pay of cadre officers appointed to non-cadre (ex-cadre) posts. The State Governments are competent to appoint cadre officers to such posts under their control to the extent that the appointments should not exceed the number of posts in the deputation reserve of the State cadre. The non-cadre (ex-cadre) posts to which cadre officers are appointed would not result in the posts becoming temporary additions to the cadre within the scope of the second proviso to rule 4(2) of the Cadre Rules.

[G.I., MHA letter No. 6/25/65-AIS(I), dated 24-4-1965].

6.1

The Government of India have clarified the scope of the second proviso to Rule 4(2) of the IAS (Cadre) Rules, 1954, as follows:-

6.2

The provision regarding addition of extra cadre posts for short periods did not exist in the ICS/IP Cadre Rules, nor did it exist in the Indian Civil Administrative Cadre Rule, 1950 or the Indian Police Cadre Rules, 1950. Even the original draft

of the present IAS/IPS Cadre Rules did not contain such proviso. It was only in the Chief Secretaries' Conference held in 1954 to consider the drafts of the various All India Services Rules & Regulations, that the question of making such a provision in the Cadre Rules, was raised by the Government of West Bengal. The discussion which took place in the Conference on this question indicates clearly the scope of this provision in the Cadre Rules. The relevant extracts from the proceedings of the meeting of the Conference, held on 13th April, 1954, are reproduced below:-

West Bengal - In the rule regarding the alteration of strength, have to make the same point that I raised this morning. The State Government should have the power to make temporary additions to the cadre for a period not exceeding one year, when the duties of the posts are closely analogous to those of the scheduled cadre posts. This would be necessary, if suddenly we feel the necessity to increase the number of say, the Superintendents of Police.

Shri Bapat - I think that will be a useful provision. We can have it.

Shri Dutt - Please let us have a draft. Of course, there is the obligation of posting only a cadre officer to such a post.

6.3

It would appear from the above discussion that the provision was made to meet the sudden and immediate need for extra posts carrying duties or responsibilities analogous to cadre posts subject to the condition that such posts will be held by cadre officers only. In actual practice occasions for resorting to this provision will be rare and ordinarily the need for such extra cadre post is not for a period exceeding one year. If the need for such extra cadre posts is for a period exceeding one year generally the need is considered to be a permanent one unless the State Governments are certain that they will not need such posts beyond a particular fixed period not exceeding three years in all. Therefore, steps should be taken for the inclusion of such posts in the permanent cadre on the expiry of one year. The idea is that by including such posts in the permanent cadre, the State Government will be able to assess correctly their needs for recruitment on the basis of the competitive examination.

6.4

If no cadre officer is available, a temporary post created with whatever designation, should not be added to the IAS/IPS cadre. If the post is held by a State Civil/Police Service Officer whether in the Select List or not, it will be a temporary addition to the State Civil/Police cadre of the State or an ex-cadre post counted against deputation reserve, if any, provided in the cadre or it would be an isolated post in the State Civil/Police Service to which the State Civil/Police Service Officers could be appointed with the approval of the State Public Service Commission, if so required by the State Rules.

[G.I., MHA letter No. 14/53/65-AIS(III), dated 21-3-1966].

7. It has been held that State Government are not competent to exceed the number of posts specified against items 2 and [5 to 8 of the cadre schedules without the prior sanction of the Central Government under rule 4(2) of the proviso there to.]

[at present items 3,4, & 6.]

[G.I. MHA letter No. 14/51/66-AIS(III), dated 21-2-1966 and file No. 14/14/65-AIS(II)].

8.1

A question was raised whether posts temporarily added to the IAS/IPS cadre of a State under the second proviso to Rule 4(2) of the IAS/IPS (Cadre) Rules, 1954, should be deemed to have been included temporarily in schedule III-A or III-B to the IAS/IPS (Pay) Rules, 1954.

8.2

The legal position in respect of the posts temporarily added to the IAS/IPS Cadre has been clarified in the Ministry of Home Affairs letter No. 14/51/66-AIS(II) dated 21st February 1966 and 14/53/65-AIS(III), dated the 21st March, 1966. It would appear therefrom that a post temporarily added to the cadre is not a 'cadre post' as defined in the IAS/IPS (Cadre) Rules, 1965. It is also not a cadre post for the purposes of IAS/IPS (Fixation of Cadre Strength) Regulations, 1955. An extra post (carrying duties and responsibilities analogous to cadre posts) could be temporarily added to the cadre, when a cadre officer is available to man such posts. If no cadre officer is available, a temporary post created with whatever designation when held by a State Civil/Police Service officer whether in the Select List or not, would be a temporary addition to the State Civil/Police Service cadre of the State of an ex-cadre post counted against deputation reserve, if any, provided in that cadre or it may be an isolated post in the State Civil/Police Service. It would have no connection whatsoever with the IAS/IPS cadre of the State.

8.3

When a post temporarily added to the IAS/IPS cadre is held by a cadre officer a declaration of equivalence under Rule 9

of the IAS/IPS (Pay) Rules, 1954, will not be necessary for the purpose of fixation of his pay under the IAS/IPS (Pay) Rules, 1954, the duties and responsibilities of such post being already analogous to a cadre post vide the second proviso to rule 4(2) of the IAS/IPS (Cadre), Rules, 1954.

[G.I., MHA letter No. 15/39/66-AIS(III), dated 22-4-1966].

9.1

The Government of India have clarified that purely temporary post may be divided into two categories - (i) Posts created to perform the ordinary work for which permanent cadre posts in the IAS/IPS cadre already exist, the only distinction being that the new posts are temporary and not permanent and (ii) isolated posts created for the performance of special tasks unconnected with the ordinary work which the Service is called upon to perform. An example of the latter type of post would be a post on a Commission of Enquiry. A distinction by strict verbal definition is difficult but in practice there should be little difficulty in applying the distinction in individual cases. The former class of posts should be considered to be temporary additions to the Cadre of the Service. The second proviso to rule 4(2) of the IAS/IPS (Cadre) Rules, 1954, gives power to the State Government concerned to add for a period not exceeding one year, and with the approval of the Central Government for a further period not exceeding two years, to a State Cadre, one or two posts carrying duties or responsibilities of a like nature to cadre posts. The latter class of temporary post should be considered as unclassified and isolated ex-cadre post, the power to create such post will depend on the provisions contained in the Book of Financial Powers of the State Government concerned.

9.2

The posts which are temporary additions to the IAS/IPS Cadre are to be created when cadre officers are available to man them, otherwise, these should be temporary additions of the cadre to which the holders of the post belong as clarified in Ministry of Home Affairs No. 15/39/66-AIS(III), dated 22-4-1966.

9.3

The posts which are ex-cadre of IAS/IPS Cadre are to be manned by cadre officers and counted against deputation reserve provided in the Cadre. There is restriction on the powers of the State Government for the creation of such posts as the number of such posts is not to exceed the number shown against deputation reserve in the Cadre. If a member of service is not going to be appointed to an ex-cadre post, the temporary post can be created either as an ex-cadre post of the State Civil/Police Service or just an ad-hoc post without equivalence as clarified in paras 6-9 of Ministry of Home Affairs' D.O. letter No. 27/28/64-AIS(III), dated 24-3-1966. It would, however, be appropriate that when the temporary post is to be held by a State Civil/Police Service Officer, it should be created in the time-scale of the State Civil/Police Service.

[G.I. MHA letter No. 40/5/66-AIS(III). dated 27-12-1966].

Government of India Instructions under Rule 4: - 1.1. The Government of India have clarified certain fundamentals regarding the management of the All India Services cadres, as follows:

1.2

At the time of the constitution of the IAS/IPS in 1947, it was decided to include the following categories of posts in the IAS cadre:-

(a)

All superior posts in the administrative departments of and above the rank of District Officers, i.e., Collectors, Commissioners, Members, Board of Revenue, Secretaries, Deputy Secretaries, etc.

(b)

A proportion of miscellaneous posts including those of Heads of Departments.

In the IPS, corresponding ranks were substituted, the principle remaining the same.

Provision was made in the rules for [triennial review]

[Now quinquennial]

of the cadre strength to adjust it according to the growing and changing needs of each State.

1.3

The senior posts as notified in the schedule of each State cadre were divided into three main categories, viz:-

(a)

Senior posts under the State Government;

(b)

Central Deputation Reserve;

(c)

Deputation Reserve.

The other categories and reserves, such as leave and training reserves and the junior posts are ancillary to the three main categories described above.

1.4

Posts that fulfill the qualifications described in 1.2 above should therefore, be enumerated as the senior posts under the State Government. The intention also has always been that all posts in the State which are required on a long term basis and which carry duties and responsibilities similar to such senior cadre posts, should be included in the cadre. At the time of the [triennial review]

[Now quinquennial]

a realistic estimate should be made of the new posts required during the next 4 to 6 years on the basis of the previous rate of expansion of the cadre and of the additional posts required in connection with the Five Year Plans and the growing business of Government and the cadre strength should be fixed after taking these needs into consideration.

1.5

The Central Deputation Quota fixes the share of the Government of India out of the State cadre for the various requirements of the Centre. By and large this quota may be taken to be the limit of deputation to the Government of India.

1.6

The Deputation Reserve is intended to provide a cushion to the State Government for its temporary and unforeseen demands of cadre officers for manning such ex-cadre posts which are required temporarily for short periods and which do not qualify for inclusion in the IAS cadre. The very name suggests that it is intended to cover short-term needs; long-term posts being brought into the cadre as soon as it is known that they would continue over a period of time.

1.7

Select Lists are intended to provide a ready list of screened State Service officers who can be appointed to vacancies that may occur in the promotion quota during a particular year. It can also be utilized to fill short-term vacancies and to meet any minor emergency requirement on a temporary basis. It has never been intended to become a parallel cadre for manning long-term vacancies either in the cadre or in ex-cadre equivalent posts.

1.8

If the cadre strength is adequately fixed keeping in view the normal rate of growth of the cadre and the requirements of the Plan etc. and if recruitment to the cadre has been on an adequate scale, the need for filling cadre posts by Select List Officers should rarely arise. There should be no long term ex-cadre posts. If there are any, they ought to go into the cadre. For short term ex-cadre posts, the deputation reserve in the cadre should be adequate. If there is an imbalance between the number of the ex-cadre posts and the deputation reserve, it can be redressed either by reducing the number of ex-cadre posts or increasing the deputation reserve.

1.9

It is not at all necessary that new senior posts which are created must be declared equivalent to cadre posts. Rule 9(1) of the Indian Administrative Service (Pay) Rules, 1954, requires that members of the service should not be appointed to an ex-cadre post unless the State Government had declared it equivalent to a cadre post. In exceptional circumstances, of course for reasons to be recorded in writing, the equation may not be made [Sub-rule(4) of rule 9 of IAS(Pay) Rules]. It is, therefore, only when a member of the service is to be appointed to an ex-cadre post and it has to be declared equivalent to a cadre post and even then it is not necessary in all cases. If a member of the service is not going to be appointed to an ex-cadre post, declaration of equivalence is not required at all. These can be created either as ex-cadre posts of the State Civil or Police Services or just ad hoc posts without equivalence.

1.10

The adequacy of recruitment rate for the all India Services is vital to the proper functioning and management of Government. Two measures are needed to ensure this. The first is the prompt encadrement of new posts likely to last over an extended period and the second is to assess future needs in advance on the basis of the past experience and the future plans. A failure in either of the two requirements will affect the adequacy of cadre strength thus leading to strains and stresses which some of the States are facing today.

1.11

Once the cadre strength has been determined at the triennial review, which can be made more frequent if required, the

rate of annual recruitment must be adequate to fill up all the posts within two or three years. In some of the States the recruitment rate has been rather low with the result that gaps continue in the cadre for years and longer Select Lists are required to meet the cadre shortages. This has two-fold disadvantages; it affects the seniority of the direct recruits and the State Service officers develop hopes and expectations beyond those provided for in the scheme of the All India services.

[G.I., M.H.A. D.O. letter No. 27/28/64-AIS(III), dated 24-3-1966.]

2.1

State Governments while framing the rules for setting up of Tribunals etc. under various Acts, make provision that the Chairman/Members of Tribunal shall be a member of the IAS equivalent in status and rank to a specified cadre post in the IAS cadre of that State. As a consequence, it becomes obligatory to encadre such posts at the prescribed levels.

2.2

In order to ensure uniformity of approach and to avoid inter-cadre imbalances which might result as a consequence of posts being encadred in the manner indicated above, the State Governments are requested to obtain the prior concurrence of this Department before making any provision in the statutory rules for filling up certain posts by the members of the IAS.

[G.I., DOPT Letter No. 11031/6/87-AIS(II), dated 20.4.1987.]

3. The question whether the posts in Public Sector Undertakings could be encadred in the AIS has been examined further and the Government of India have been advised that such posts cannot be encadred in the cadre schedules of the All India Services as cadre posts.

[G.I., DOPT Letter No. 11031/18/88-AIS(II), dated 8.12.1988.]

4.1

The Government of India have issued the following clarifications regarding rule 4 of the Cadre Rules and the various reserves against which officers holding posts other than cadre posts are to be shown:-

4.2

Under Rule 3 of the Cadre Rules, Cadres have been constituted for each State or group of States. The strength and composition of each of these cadres have been determined by the Regulations, framed under the Cadre Rules and have been shown in the Schedule to those Regulations. The term 'cadre post' has been defined as any post specified under item 1 of each cadre in the Cadre Schedule vide clause (b) of Rule 2 of the Cadre Rules.

4.3

The power to alter the strength and composition of a cadre vests in the Central Government, vide Sub-rule (1) of Rule 4 of the Cadre Rules. With a view to meeting emergent needs of the State administration, the State Government concerned has been authorised vide the second proviso under sub-rule (2) of Rule 4 of the Cadre Rules, to add for a period not exceeding one year to a State Cadre, one or more posts carrying duties or responsibilities of like nature to cadre posts. However, the posts so added by State Government do not become cadre posts.

4.4

With a view to ensuring that the members of the Indian Administrative Service are not deployed on posts which do not require to be manned by officers of that caliber, it has been provided, vide sub-rule (1) of Rule 9 of the Indian Administrative Service (Pay) Rules, 1954 (hereinafter referred to as "The Pay Rules") that no such members shall be appointed to a post other than a post specified in the Schedule III to these Rules hereinafter referred to as the "Pay Schedule") unless a declaration is made that the said post is equivalent in status the Pay Schedule. However, for the sufficient reasons to be recorded in writing, such a declaration may be dispensed with, vide subrule (4) of Rule 9 of the Pay Rules.

4.5

Neither a post which is declared equivalent in status and responsibility to a post included in the Pay Schedule nor a post in respect of which such declaration has been dispensed with, is a cadre post.

4.6

Powers under the second proviso under sub-rule (2) of Rule 4 of the Cadre Rules are to be invoked only for increasing the number of posts with a particular designation already included in the Cadre Schedule. If a post with a particular designation does not figure in the Cadre Schedule, it cannot be created by invoking these powers. It will have to be created, where necessary, by the State Government, under their inherent powers and if a member of the Indian Administrative Service is to be appointed thereto such appointment should be regulated under rule 9 of the Pay Rules.

4.7

When a post is created by invoking the powers under the second proviso to sub-rule (2) of Rule 4 of the Cadre Rules, further action under Rule 9 of the Pay Rules, is not necessary, because the post will already be figuring in the Pay Schedule.

4.8

Thus, powers under sub-rule (2) of Rule (4) of the Cadre Rules and under Rule 9 of the Pay Rules, are mutually exclusively and together are exhaustive, in so far as posts under the State Government are concerned.

[G.I., DP&AR letter no, 4/12/70-AIS(I) dated 26.5.71 - remaining part superseded by Government of India Instruction No. 6 quoted below]

5.1

The Government of India have issued the following clarifications regarding the composition of the Central and State Deputation Reserves:-

5.2

Under second proviso to sub-rule 2 of Rule 4 of the Cadre Rules, the State Government is competent to add for a period not exceeding one year and, with the approval of the Central Government, for a further period not exceeding two years, to a State or Joint Cadre one or more posts, carrying duties or responsibilities of a like nature to cadre posts. Doubts have been raised whether such posts are to be considered as cadre posts or as ex-cadre posts against the State Deputation Reserve. It is hereby clarified that the posts which are created in exercise of the powers of the State Governments under the second proviso under sub-rule 2 of rule 4 of the Cadre Rules are to be counted as temporary cadre posts added temporarily to the Cadre Schedule and as such, they are not to be counted against the State Deputation Reserve. However, only such posts which are created for increasing the number of posts with a particular designation already included in the Cadre Schedule would be counted in this category.

5.3

On the other hand, if a post with a particular designation does not figure in the Cadre Schedule, it cannot be created by invoking this power. It can be created as per necessity by the State Government under their inherent powers and the members of the All India Services cannot be deployed to such a post unless a declaration is made that the post is equal in status and responsibility to a post mentioned in Schedule III to the respective Pay Rules under sub-rule 1 of rule 9 of the same Rules. However, for sufficient reasons to be recorded in writing such a declaration may be dispensed with vide sub-rule 4 of rule 9 of the respective Pay Rules.

5.4

Neither a post which is declared equivalent in status and responsibility to a post included in the pay schedule, nor a post in respect of which such a declaration has been dispensed with, is a cadre post. Such a post is to be counted against the State Deputation Reserve. Apart from these posts, the other kinds of posts which are to be counted against the State Deputation Reserve are as follows:-

[Remaining part superseded by letter No.11033/1/98-AIS(II) dated 13.6.2000 (quoted below)]

[G.I. DOPT letter no. 11033/1/98-AIS(II) dated 23.4.98]

6. Copy of the letter no. 11033/1/98-AIS(II) of Government of India, Ministry of Personnel, P.G. & Pensions (Department of Personnel & Training) addressed to the Chief Secretaries of All States/UTS clarifying composition of Central and State Deputation Reserve - Clarification regarding.

6.1

Reference is invited to this Department's letter of even number dated 24.3.1998 and 6.8.99 and letter no. 11031/19/75-AIS(II), dated 16.4.1975 as well as letter no. 4/12/70-AIS(I) of DP&AR dated 26.5.1971. In respect of the composition of the State deputation Reserve and the Central Deputation Reserve, the matter has been further considered in this Department and it has been decided that this will comprise different components as described below:

(i)

The State Deputation Reserve will comprise the following:-

(a)

All ex-cadre posts held by cadre officers under the control of the State Government including those on inter-cadre deputation to another State Government.

(b)

All posts under a Company, Association or a body of individuals, whether incorporated or not, which is wholly or

substantially owned or controlled by the State.

(c)

All posts under a Municipal Corporation or Local Body under the control of the State Government.

6.2

The Central Deputation will comprise the following:-

All posts held by the All India Services officers under the control of the Central Government including posts under a company, association or body of individuals, whether incorporated or not, which is wholly or substantially owned or controlled by the Central Government and all posts under Rule 6(2)(ii) of the IAS/IPS/IFS (Cadre) Rules, i.e. the posts in an international organisation, an autonomous body not controlled by the Government or private body.

6.3

To this extent, the orders of Government of India vide DOP&AR letter no. 4/12/70-AIS(I), dated 26.5.1971 stand modified.

[G.I. DOPT letter No. 11033/1/98-AIS(II), dated 13.06.2000.]

7.1

A question was raised as to how the scale check prescribed in MHA endorsement No. 14/51/65-AIS(III), dated 21-2-1966 should be conducted. The Government of India have considered the matter carefully and they have decided that the scale check in respect of the IAS/IPS cadre of each State should be carried out by the Accountant General concerned with reference to the IAS/IPS (Fixation of Cadre Strength) Regulations, 1955, in relation to each State. In other words it should be examined whether the posts shown against each item have been properly utilised. It is also to be checked up whether any of the cadre posts is held by a non-cadre officer and if so whether it is with proper approval of the competent authority under rule 9 of the IAS/IPS (Cadre) Rule, 1954, and whether non-cadre officers (Select List Officers) have been appointed to officiate in cadre posts in the order in which their names appear in the current Select List.

7.2

The intention is that the quarterly check should be conducted for the quarters ending 31st March, 30th June, 30th September and 31st December and the results should be communicated by the Accountant General concerned to the Government of India as also the State Government concerned within one month i.e. the report for the quarter ending 31st March should be communicated by the 30th April, and so on.

7.3

The Government of India have also decided that copies of the current Select List and the orders issued under rule 9 of the IAS/IPS (Cadre) Rules, 1954, from time to time should be supplied to the Accountants General to enable them to carry out the above-mentioned scale check. They will, no doubt, treat the Select Lists as confidential documents and utilise them for official use only, as required under the existing instructions.

[G.I., MHA letter No. 16/5/66-AIS(III), dated 23-6-1966].

8. Rule 4 of the Cadre Rules provides for a review of the strength and composition of the cadre at the interval of every three years. The State Governments are, therefore, requested to sponsor their Now [triennial review]

[Now quinquennial.]

proposals after taking into consideration their requirements at least for [3 years to avoid frequent proposals for amendments to the cadre schedule. However, cases where changes in the cadre are considered unavoidable and cannot be delayed till the next triennial review, in such circumstances proposals may be made once in a year i.e. in the month of January. The State Governments are therefore, requested to adhere to this procedure for proposing amendments to the cadre schedule.]

[Now quinquennial.]

[G.I. MHA letter No. 6/10/68-AIS(II), dated 27-2-1968].

9. Letter to the Chief Secretaries of all States on fixation of norms for conducting review of cadre strength and composition of the State cadres of Indian Administrative Service

9.1

The issues pertaining to fixation of norms for conducting review of cadre strength and composition of the state cadres of Indian Administrative Service had been under consideration in this Department for quite some time.

9.2

The need for fixing the norms for All India Services had arisen due to the concerns of cadre management given in the

age profile of IAS officers and bulge in the cadre structure for officers between the ages of 45-60 years and the need for parity in career prospects between States. Balanced cadre structures and regular promotion prospects will help overall cadre management.

9.3

Formulation of norms would help streamline this process over time. The Fifth Central Pay Commission Report has recommended a 30% reduction in the authorized strength of the All India Services both at the Centre and at the State. The Commission has highlighted the demoralizing effect of creation of unnecessary posts both in the Centre and at the State and surrendering unnecessary posts and has recommended selectivity in promotion and fast track promotions. A streamlined IAS Cadre is desirable and will help management of the cadre. The norms which are adopted will be reviewed every five years. Fixing of norms of cadre strength will allow for flexibility within the overall ceiling will help improve the situation. A pyramidal structure with minimum ratio between higher and lower level is desirable for parity and balanced cadre structure.

9.4

A copy of the norms/ guidelines for IAS prepared by this Department was sent to the State Government vide letter of even number dated the 17th July, 2003 for obtaining their views/comments by the 11th August, 2003. This was followed by a number of reminders.

9.5

Based on the responses received from the State Governments, it has been decided to adopt the following norms while conducting the review of cadre strength and composition of the State cadres of Indian Administrative Service:

(i)

The total cadre strength will not normally be allowed to increase in any state. The number of junior posts (including leave reserve) should be 16.5% of the SDP. The level of recruitment should be pegged between 2.75-3.25% of the SDP every year.

(ii)

The break-up of the cadre posts should be approximately as given in the following table:-

S.No.

Level/Scale in SDP

% of Posts

1

Rs. 26,000/- (fixed)

2.00%

2

ASTS

8.00%

3

STS

30.00%

4

Selection Scale

25.00%

5

Senior Scale/JAG

35.00%

(iii)

The State Governments may have the flexibility of adjusting the number of Senior and Selection Scale posts subject to the condition that the total percentage of these posts will not exceed 60%.

(iv)

The State Governments may also have the flexibility to create ex-cadre posts subject to the following:-

(1)

The number of ex-cadre posts at the Rs. 26,000 (fixed) grade will not exceed the number of cadre posts.

(2)

The total number of persons on ex-cadre posts and Central Deputation shall not exceed the CDR + SDR for the State. (This has been superseded vide DOPT letter No. 20011/1/2005-AIS-II dated 23.01.2008, which is given in the IAS (Pay) Rules, 2007, under Government of India decision.)

(3)

While the State will need to define the ex-cadre posts at the time of the cadre review, they may at their discretion change the designations/posts up to 15% of the designated posts.

9.6

The above norms/guidelines will be followed while considering the proposals of review of the strength and composition of State Cadre of Indian Administrative Services and other cadre matters. The State Governments are requested that the cadre review proposals may be prepared keeping in view the above norms/guidelines.

[G.I. DOPT letter No.11033/3/2002-AIS-II, dated 27.01.2005]

Government of India's Decisions under Rule 5: - 1. It has been decided that, while allocating candidates selected on the basis of the annual competitive examinations to the various State Cadres, the recommendation of the States Reorganisation Commission, that at least 50 per cent of the new entrants in any state cadre should be from outside the State concerned, shall be borne in mind.

[G.I. MHA File No. 1/66/50-AIS(I).]

Government of India's Decisions under Rule 6: - 1. The terms of deputation of a cadre officer deputed to another State shall be finalised by the borrowing Government in consultation with the lending Government. If there is any point of difference between them, it may be referred to the Government of India.

[G.I., MHA Letter No. 22/6/57-AIS(II), dated 30.5.1957.]

2. The terms of deputation of an officer, deputed on foreign Service are normally issued by the lending authority, in consultation with the borrowing authority. In the case of the All India Services, however, the All India Services (Leave) Rules, 1955, the All India Services (Conduct) Rules, 1968 and the All India Services (Discipline and Appeal) Rules, 1969 provide that a member of an All India Services whose services are placed at the disposal of a company, corporation etc. by the Central Government or the Government of a State shall, for the purpose of these rules, be deemed to be a member of the Service serving in connection with the affairs of the Union or in connection with the affairs of that State, as the case may be. By virtue of the provision contained in these rules, if the terms of deputation of a member of an All India Service deputed to a public sector undertaking controlled by the Central Government, are issued by a State Government, 'Government' in his case will be a State Government concerned. It is, however, only proper that such a member of an All India Service should be under the control of the Central Government for the purposes of these Rules. In view of this, the terms of deputation of a member of an All-India Service who is serving in connection with the affairs of a State and who is deputed to a public sector undertaking etc. controlled by the Central Government should be issued by the Ministry/Department of the Central Government which is administratively concerned with that organization in consultation with the State Government of Joint Cadre Authority on whose cadre the officer is borne.

[G.I. DOPT Letter No. 13/27/74-AIS(II), dated 17.1.1975. (the relevant portion only)]

3.1

Rule 6(2)(ii) of the IAS(Cadre) Rules, 1954 and corresponding rules governing the Indian Police Service and Indian Forest Service enables deputation of a member of the service to a non-Government body by the Central Government in consultation with the State Governments concerned.

3.2

The Rajya Sabha Committee on Subordinate Legislation in their 93rd report has observed that members of the All India Service should be deputed to such bodies only in exceptional circumstances for reasons to be recorded in writing. The above observations of the Rajya Sabha Committee may be kept in mind while recommending the deputation of members of All India Service to non-Government bodies.

[G.I., DOPT Letter No. 28020/4/91-AIS-II dated 26.7.1993.]

4.1

Rule 6(2)(ii) of the IAS(Cadre) Rules and the corresponding rules governing the IPS and IFS enable the deputation of a member of the Service to an international organisation, an autonomous body not controlled by Government or a private body, etc. In such cases, the Central Government is the authority competent to order such deputation and the consent of the State Government and the officer concerned is also required.

4.2

It is seen that in several instances officers of the All India Services are required to be sent on deputation to the Universities/teaching or training institutions of repute which are autonomous organisations and which are not controlled by the Government, and therefore, such deputations fall within the purview of Rule 6(2)(ii). It has now been decided that in all such cases, the State Government may themselves order the deputations in institutions located within the State, for a period of upto three years, provided that prior consent of the officer is obtained and the Central Government is kept informed of all such deputations. This provision will not apply to deputations to Central Universities/Deemed Universities or institutions established by the Government of India.

4.3

In regard to the question of the 'cooling-off' period required to be completed by an officer who was on Central deputation before being eligible to be deputed to a body referred to under Rule 6(2)(ii), presently there are no such requirements of a 'cooling-off' period. However, in order to ensure that officers at the end of Central deputation return to serve their States, it has been decided that all such officers will be required to 'cool-off' in their States at the end of their period of Central deputation before they can be considered for deputation under Rule 6(2)(ii) if their place of posting is located outside their own allotted States.

[G.I. DOPT Letter No. 14017/16/91-AIS-II dated 13.10.1993.]

5. II. Guidelines for Deputation of Members of The All India Services Under Rule 6(2)(ii) of The Respective cadre Rules

1. Deputation under rule 6(2)(ii) may be allowed to the following categories of organisations:

- a. Constitutional bodies
- b. Statutory bodies created by law of Parliament or State legislatures
- c. Multilateral bodies, bilateral bodies, international financial institutions, international organisations and NGOs and multilateral organisations, defined as follows:-

International organisations notified by the MEA under the UN (Privileges and Immunities) Act, 1947:

(a)

United Nations Organisations or Organisations under the UN.

(b)

Bilateral bodies set up under the Vienna Convention i.e.. Embassies and Bodies set up under them eg. USAID, DFID, NORAD etc.

(c)

International financial institutions eg. The World Bank, IMF, Regional Banks like ADB, Afro-Asian Rural Reconstruction Organisation etc.

(d)

Multilateral Organisations eg. International Court of Justice, IAEA etc. and bodies of Regional Cooperation eg. SAARC, EU etc.

(e)

International NGOs eg. International Committee of the Red Cross.

(f)

Other foreign NGOs from whom India receives Technical/financial assistance eg. Action Aid - clearance from Ministry of Home Affairs and MEA would be sought for such deputations.

(g)

International organisations, which are private bodies.

d. Private bodies to be defined as follows:

(a)

Non Profit organisations of repute working in the fields of research, social work social development, infrastructure etc.

(b)

Organisations registered under the Societies Registration Act.

(c)

Organisations registered under the Charitable Trusts Act.

(d)

Apex bodies of Industries and Commerce under the various statutes

(e)

Organisations registered under the Cooperatives Act.

e. Autonomous bodies not controlled by Government which are defined as follows:

(a)

The following criteria may be taken into account - any of the three may be the basis:

(i)

Structure of the Organisation - Organisations covered by the Rule 6(2)(ii) may include Constitutional bodies, Statutory organisations, Commissions, Regulatory Authorities and organisations like Universities with functional autonomy created under Constitutional and statutory provisions. These organisations may opt for the Central Staffing Scheme or not opt for the same.

(ii)

Financial Autonomy - Organisations with less than 50% share of government funding or organisations where Government is not a majority shareholder.

(iii)

Power to give directions - Organisations over which the Government has no power to give directions. The nature of byelaws and the power to guide would be important, for example, in the case of the Food Corporation of India (FCI). Organisations where Government officials hold ex officio positions cannot be considered as autonomous

2. Deputations to the international agencies shall be regulated in terms of Consolidated Instructions on Foreign Assignments issued from time to time.

3. The inclusion of organisations under the Registrations of Companies Act may be examined separately.

4. Deputations under rule 6(2)(ii) shall not be allowed to those private bodies:

a. which are or have relations with organisations of a political, religious or sectarian nature.

b. Against which any FIR has been lodged or charge sheet filed or case pending for a violation of any law of the land, including private bodies which have in the past been convicted in a court of law for violation of any law of the land. The borrowing private body shall have to give a mandatory certificate in this regard.

5. The general principle of public interest shall be the overriding factor in deciding deputations under this rule to private bodies. Factors such as general reputation of the private body and the nature of its business shall also be examined in each case. The competent authority shall also see whether there is any enrichment of the experience of the officer by such deputation.

6. FCRA clearance shall be required for deputation to an organisation receiving foreign donations.

7. All deputations under Rule 6(2)(ii) shall be considered only with the consent of the officer concerned and the approval of the cadre controlling authority. Cadre Controlling Authority would mean the State Government concerned if the officer is in his cadre. If the officer is with the Government of India, then it would mean the Ministry of Home Affairs in the case of IPS officers, MOEF in the case of IfoS officers. This approval is a precondition for the cases being placed in the Committee detailed in Para 8 below. In the case of IAS officers serving in the Government of India, since the Committee at Para 8 below also includes Secretary(P) the proposals would directly be placed before the Committee.

8. A Committee under the Chairmanship of Cabinet Secretary comprising Secretary(P), Finance Secretary may be set up to screen, on a case to case basis, applications/requests seeking deputation under 6(2)(ii). For officers below the Joint Secretary level to Government of India, the recommendations of the Committee shall be approved by the MOS(PP). For officers of the level of JS and above the recommendations of the Committee would be routed through MOS(PP) to PM for approval.

9. No deputation under Rule 6(2)(ii) can be considered, under any circumstances, as a mandatory posting.

10. A member of Service shall be eligible for deputation under Rule 6(2)(ii) only after he has served for at least 9 years in his/her cadre.

11. A member of Service shall be eligible for deputation under Rule 6(2)(ii) only if he is clear from vigilance angle.

12. For deputation under Rule 6(2)(ii) the officer should not have dealt with the borrowing organisation in the last five years.

13. An officer shall not be allowed to proceed on deputation to organizations in which he or any of his blood relations is connected with the setting up/management of the organization.

14.

Mode of selection for the post may be based on advertisement, nomination or direct offer. For international organisations, these form part of the Consolidated Instructions.

15.

An officer of service may be allowed deputation for an initial period of maximum of 5 years under Rule 6(2)(ii) and a maximum of 7 years of deputation can be allowed in the first 30 years of service. There shall be a minimum cooling off of three years between two stretches of deputation under Rule 6(2)(ii) in the first 30 years of service. Beyond 30 years of service, there shall be no limit to the period of deputation.

16.

The limit of 5 years in one stretch and 7 years in the entire career shall not be extended under any circumstances. The officer shall be deemed to have resigned from service in case he/she fails to join the Government within one month of completion of his/her approved tenure with the concerned organisation.

17.

In the first 30 years of service, an officer shall have to undergo a cooling off period of 3 years at the end of completion of deputation under Rule 6(2)(ii). If an officer is on deputation under Rule 6(2)(ii) at the time of completing 30 years of service, he shall have to undergo a cooling period of one year. Beyond 30 years of service, there shall be no requirement of cooling off, for officers completing a period of deputation under Rule 6(2)(ii).

18.

While serving in Constitutional/statutory/ multilateral or bilateral organisation/international financial organisations, the officer shall be eligible to draw pay and allowances as per the scheme of the borrowing organisation. In the other organisations, the officer may opt for his grade pay or the pay of the post, whichever is more beneficial to him. The concerned organisation would also be required to pay the cost of retirement benefits/leave salary etc. of the officer failing which the officer shall pay to the concerned State Government on whose cadre he is borne.

19.

While on deputation, the service conditions of the officer shall continue to be regulated under the relevant All India Service Rules. Other terms and conditions may be in accordance with standard terms devised from time to time.

20.

The provisions of paying to the Government 1/3rd of the amount of fee earned by the officer during short-term assignments with international organisations may also be removed. This distinction between international organizations and other national organizations under Rule 6(2)(ii) may be modified in this respect also.

21.

Participation in the pension scheme - The officers deputed, except to Constitutional bodies, which may have their own regular pension schemes, shall not be permitted to join the pension schemes of the organization under any circumstances. A member may join the Pension scheme of the UN bodies in accordance with the relevant rules. On joining the same, the service rendered by the officer during the deputation period shall not be counted as qualifying for pension.

22.

The entire expenditure in respect of pension and leave salary contribution for the period of deputation shall be borne by the borrowing organization, failing which by the member of the Service. However those allowed joining the pension schemes of the organizations mentioned above, shall not be required to make pension contributions.

23.

Performance appraisal/ACRs during the period of deputation - The Competent Authority in the organisation accepting the officer shall provide an ACR/Performance appraisal written in such form as prescribed under rules. The report shall be place in the PAR dossier and treated as mandatory input for empanelment and promotion.

24.

The terms and conditions of deputation shall be finalised by he concerned State Government, if the officer is in the cadre. If the officer is in the Government of India, the Ministry concerned i.e. Ministry of Home Affairs in the case of IPS, MOEF in the case of IFOS and DOPT in the case of IAS shall finalise the same. However, this may be done in accordance with the standard terms and conditions prescribed by the DOPT.

25.

Notwithstanding anything above, the Government shall have the absolute right to refuse permission or recall an officer from a period of deputation under Rule 6(2)(ii).

26.

The above principles may be applied to other services and guidelines prepared for the Central Services.

27.

An officer on deputation under Rule 6(2)(ii) shall be considered for empanelment on his turn by taking into account the ACRs/PARs written by the borrowing organisations during the period of deputation. In other words, empanelment shall not be postponed on the grounds that an officer is on deputation under Rule 6(2)(ii).

28.

Deputation under Rule 6(2)(ii) or intercadre deputation or deputation under the Consolidated Instructions on Foreign Assignment shall not be allowed until an officer has completed 9 years of service in his cadre.

29.

The total period of deputation under Rule 6(2)(ii), intercadre deputation and deputation under Consolidated Instructions on Foreign Assignments in the first 30 years of service shall not exceed 10 years.

30.

In the first 30 years of service, there shall be a cooling off of three years after a period of deputation under Rule 6(2)(ii), intercadre deputation and deputation under Consolidated Instructions on Foreign Assignments.

31.

In the first 30 years of service, absence from the cadre shall not exceed 7 years at a stretch as a result of deputation under Rule 6(2)(ii), intercadre deputation and deputation under Consolidated Instructions on Foreign Assignments.

32.

The above (Paras 28-31) shall not apply to the North East cadres for which certain special dispensations have been made.

(Guidelines issued vide letter no.. 14017/33/2005-AIS(II)(Part I) dated 27th December, 2006)

III. Revised Standard Terms and Conditions for Deputation of All India Services Officers under Rule 6(2)(ii) of The IAS (Cadre) Rules, 1954 and Similar Cadre Rules of IPS and IFS.

I am directed to refer to this Department's letter No. 29018/3/97-AIS(II) dated 10th August, 1998 and 29018/5/2001-AIS(II) dated 21/8/2002, issuing terms and conditions for deputation of All India Services officers to public sector undertakings etc. This Department has issued the aforesaid standard terms and conditions for deputation of All India Services officers to public sector undertakings and on other foreign services for regulating various aspects of their deputation in such organizations.

2. A need has been felt in view of issue of the guidelines for consideration of deputation proposal under Rule 6(2)(ii) of the respective cadre rules of the All India Services to revise the aforesaid standard terms and conditions so as to bring it at par with the standard terms and conditions prevalent for the counter-parts in the Central Civil Services. Accordingly the existing standard terms and conditions for deputation of AIS officers under Rule 6(2)(ii) of the respective cadre rules have been reexamined and a revised set thereof is enclosed. This new set of standard terms and conditions is effective w.e.f. 27th December, 2006. It will also be applicable to the All India Services officers who are presently on deputation, but the benefits of the revised standard terms and conditions will be available w.e.f. 27th December, 2006 only. Cases in which an officer has ceased to be on deputation prior to 27/12/2006 need not be re-opened for purposes of these Rules.

3. The terms and conditions of deputation shall be finalised by the concerned State Government, if the officer is in the cadre. If the officer is in the Government of India, the Ministry concerned i.e. Ministry of Home Affairs in the case of IPS, MOEF in the case of IFOS and DOPT in the case of IAS shall finalise the same. However, this may be done in accordance with the standard terms and conditions prescribed by the DOPT.

Standard Terms and Conditions for All India Services Officers Proceeding on Deputation under Rule 6(2)(ii) of IAS Cadre Rules, 1954 and Similar Cadre Rules of IPS and IFS

1. Period of Deputation: From.....to.....

(Details as per approval of the competent authority)

2. Pay: While serving in Constitutional/statutory/ multilateral or bilateral organisation/international financial organisations, the officer shall be eligible to draw pay and allowances as per the scheme of the borrowing organisation. In the other organisations, the officer may opt for his grade pay or the pay of the post, whichever is more beneficial to him. This grade pay should be pay of the post which he held immediately before proceeding to the deputation post and he was promoted to the post in his cadre in accordance with the rule and Government of India decisions in this regard. The member of the service may opt the pay scale of the post in the borrowing organization instead of his grade pay. He will be given further option in case if there is any change in the substantive notional pay in his parent cadre.

3. Deputation Allowance: A member of the service while on deputation will be eligible to draw deputation allowance wherever admissible in case he has given option to draw his grade pay of the cadre. However, he will not be eligible to

draw deputation allowance if he opts for pay of the post of the borrowing organization.

4. Dearness Allowance: If a member of the service has given option to draw his grade pay of the cadre post, alongwith deputation allowance, if any, he will be eligible to draw dearness allowance at the Central Government rates. However, in case the member of the service has opted for pay of the post in the borrowing organization, this allowance would be admissible as per the existing rules of the borrowing organization.

5. City Compensatory Allowance: If a member of the service has opted for his grade pay of the cadre post, the City Compensatory Allowance would be applicable as per the Central Government rules otherwise this will be regulated in accordance with the existing provisions of the borrowing organization.

6. House Rent Allowance: If a member of the service has opted for drawing his grade pay of the cadre he would be required to pay 10% of the pay plus DA/DP and CCA or the prescribed license fee for similar class of accommodation in the Government, whichever is lower. However, if the officer has opted to draw pay scale of the post of the borrowing organization this will be regulated as per existing rules of that organization.

7. Transfer T.A./Joining Time: A member of the service will be entitled to TA and Joining Time both on joining the post on deputation and on reversion under the rules of the borrowing organization which shall not be inferior to the relevant provisions of the AIS Rules. The expenditure on this account will be borne by the borrowing organization.

8. TA/DA for journey on duty: A member of the service will be paid Traveling Allowance and Daily Allowance by the borrowing organization under its own rule for the journey undertaken by him in connection with the official work under that organization whether in India or abroad, which shall not be inferior to the relevant provisions of the All India Services Rules.

9. Medical facilities: The borrowing organization shall afford to a member of the service medical facilities not inferior to those which are admissible to an All India Service Officer of the same status under Central Government rules on the subject.

10. Leave and Pension: During the period of deputation, a member of the service will continue to be governed by the All India Services(Leave) Rules, 1955 and the All India Services(DCRB) Rules, 1958. The entire expenditure in respect of leave and pension contributions shall be borne by the borrowing organization failing which by the member of the service himself. The member of the service shall not be allowed to join any of the pension schemes of the borrowing organization.

11. Provident Fund: During the period of foreign service, a member of the service will continue to subscribe to the AIS(Provident Fund) Scheme to which he was subscribing at the time of proceeding on foreign service in accordance with the rules of such fund.

12. Conduct, Discipline and Appeal Rules: A member of the service shall continue to be governed by the All India Services(Conduct) Rules, 1968 and All India Services(Discipline and Appeal) Rules, 1969.

13. Leave Travel Concession: The organization shall allow Leave Travel Concession to a member of the service as admissible under its own rules provided these are not inferior to those admissible to him under the AIS(LTC) Rules, 1975. The whole expenditure in this regard shall be met by the borrowing organization. This is, however, subject to the condition that the officer had not already, before proceeding on deputation, availed of the concession during the particular block years period of his deputation.

14. Disability Leave: The borrowing organization will be liable to pay leave emoluments in respect of disability leave, if any, granted to a member of the service on account of any disability incurred in and through foreign service even though such disability manifests itself after termination of foreign service. The relevant AIS rules will be applicable in such cases.

15. Leave Salary/Pension Contributions: Participation in the pension scheme - The officers deputed, except to Constitutional bodies, which may have their own regular pension schemes, shall not be permitted to join the pension schemes of the organization under any circumstances. A member may join the Pension scheme of the UN bodies in accordance with the relevant rules. On joining the same, the service rendered by the officer during the deputation period shall not be counted as qualifying for pension.

The entire expenditure in respect of pension and leave salary contribution for the period of deputation shall be borne by the borrowing organization, failing which by the member of the Service. However those allowed joining the pension schemes of the organizations mentioned above, shall not be required to make pension contributions.

The organization will pay to the Government of the parent cadre of the member of the service leave salary and pension contributions at the rates in force from time to time in accordance with the orders issued by the President under F.R.

116. The payment of these contributions must be paid annually within 15 days from the end of each financial year or at the end of foreign service if the deputation expires before the end of a financial year. Delayed payment will attract liability of payment of interest in terms of the instructions contained in the Ministry of Finance's Notification No. F.1(1)-E.III/83 dated the 10th August, 1983, as amended from time to time. Pending intimation of the rates of Leave Salary and Pension Contributions by the concerned Accountant General, the organization shall pay Leave Salary and Pension Contributions provisionally at the prescribed rates.

16. Group Insurance: If a member of the service has not opted out of the Central Government Employees Group Insurance Scheme, 1980, before 31.12.1981, the said scheme as appended to the Schedule to the AIS(Group Insurance) Rules, 1981, shall be applicable to him. In that case, an amount of deducted from his salary as per prescribed rates as subscription towards the Insurance Scheme shall be remitted to the concerned Accountant General by the organization. If at any time the recovery of subscription falls in arrears, the same shall be recovered with interest admissible under the Scheme on the accretions to the Saving Fund.

17. Performance appraisal/ACRs during the period of deputation - The Competent Authority in the organisation accepting the officer shall provide an ACR/Performance appraisal written in such form as prescribed under rules. The report shall be place in the PAR dossier and treated as mandatory input for empanelment and promotion.

18. Notwithstanding anything above, the Government shall have the absolute right to refuse permission or recall an officer from a period of deputation under Rule 6(2)(ii).

19. Residuary Matters: In all matters relating to conditions of service and benefits/facilities and perquisites in the borrowing organization not covered by Item 1 to 16 above, a member of the service shall be governed by the existing rules, regulations and orders of the borrowing organization. The above mentioned terms and conditions would be applicable till the member of the service remains on deputation with the borrowing organization. On reversion from deputation, he/she will be governed by the relevant rules laid down for the All India Services Officers.

(Instructions issued vide DOPT's letter no.14017/3/2007-AIS(II), dated 6th March, 2007)

IV. Consolidated Deputation Guidelines for AIS Officers Dated 28/11/2007

The guidelines for the All India Services with respect to Rule 6 of the IAS(Cadre) Rules and analogous provisions in the IPS (Cadre) Rules and IFoS (Cadre) Rules are consolidated as follows:-

1. Rule 6(1)

"A cadre officer may, with the concurrence of the State Governments concerned and the Central Government, be deputed for service under the Central Government or another State Government or under a company, association or body or individuals, whether incorporated or not, which is wholly or substantially owned or controlled by the Central Government or by another State Government ."

1.1

Central Staffing Scheme:-

Posts that are to be covered:

Ministries/Departments of Government of India

Procedure to be followed for appointment:

Civil Services Board (JS and below), with ACC approval for JS and above

Tenure to be applicable:

US level - 3 years

DS level - 4 years

Dir level - 5 years

JS level - 5 years

JS/AS level - 7 years (subject to 3 years in the second post, and also subject further to a minimum of 5 years in the Centre.)

AS level - 4 years

Secy level - no ceiling.

1.2

Non-Central Staffing Scheme posts:-

1.2.1

Posts that are to be covered:

Autonomous Institutions wholly or substantially funded or controlled by the Central Government.

Procedure to be followed for appointment:

Search-cum-Selection Committee process as laid down in DoPT Office Memorandum No. 28/13/2006-EO(SM.II) dated 03/07/2006 OR as per approved RRs OR as per statutory provisions for institutions covered by specific status (with ACC approval for Chief Executives carrying pay scales of Rs.18400-22400 or above).

Tenure to be applicable: As provided under the Central Staffing Scheme.

1.2.2

Posts that are to be covered:

CVOs

Procedure to be followed for appointment:

From DOPT panel with concurrence of CVC and Ministry concerned (with ACC approval for JS and above), i.e. as per current procedure.

Tenure to be applicable:

Maximum of 5 years. (A deputation of 3 +3 years is permissible when an officer moves from one PSU to another).

1.2.3

Posts that are to be covered:

Central PSUs or PSUs of another State or PSUs wholly or substantially owned and controlled by two or more States.

Procedure to be followed for appointment:

Subject to exemption from Immediate Absorption Rule through PESB/Search Committee (with ACC approval for JS and above)

Tenure to be applicable: As provided under the Central Staffing Scheme.

1.2.4

Posts that are to be covered:

Constitutional Bodies or staff officers of Heads of Constitutional Bodies

Procedure to be followed for appointment:

Civil Services Board OR on request by name, subject to vigilance clearance and suitability (with ACC approval for JS and above)

Tenure to be applicable: As provided under the Central Staffing Scheme.

1.2.5

Posts that are to be covered:

Statutory Bodies set up by an Act of Parliament or staff officers of Heads of such Statutory Bodies.

Procedure to be followed for appointment:

Civil Services Board OR on request by name, subject to vigilance clearance and suitability (with ACC approval for JS and above)

Tenure to be applicable: As provided under the Central Staffing Scheme.

1.2.6

Posts that are to be covered:

Non-permanent, Non-Statutory Bodies with a specific term set up through executive orders/notification by the Central Government-like Administrative Reforms Commissions, Pay Commission, National Manufacturing Competitiveness Commission, Sachar Committee, Inquiry Commissions, etc.

Procedure to be followed for appointment:

Civil Services Board (with ACC approval for JS and above)

Tenure to be applicable: As provided under the Central Staffing Scheme.

Provided that, if an officer moves from a CSS to a non-CSS post, or vice versa, she/he shall be eligible for an additional tenure of two years, subject to at least two years on either post.

1.3

Inter-Cadre Deputation.

Posts that are to be covered:

To another State Government

Procedure to be followed for appointment:

With the concurrence of the State Government on whose cadre the officer is borne and the borrowing State Government, and with the approval of the Central Government, as per the terms laid down in DoPT O.M.

No.13017/16/2003-AIS(I) dated 08/11/2004 and subsequent O.Ms dated 31/10/2005 and 03/10/2007.

Tenure to be applicable:

Maximum of 5 years, provided that the officer has completed 9 years in his own cadre and has not reached the Super-time Scale.

2. Rule 6(2)(i)

"A Cadre officer may also be deputed for service under a company, association or body of individuals, whether incorporated or not, which is wholly or substantially owned or controlled by a State Government, a Municipal Corporation or a Local Body, by the State Government on whose cadre she/he is borne."

Deputation within the State Government on whose cadre the officer is borne.

Posts that are to be covered:

(i)

A Municipal Corporation or a Local Body of the State.

(ii)

State Government PSUs

(iii)

Training/Research/Educational Institutions wholly or substantially funded or controlled by the State Government.

(iv)

Autonomous Institutions wholly or substantially funded or controlled by the State Government.

(v)

A registered Trust or Society or Association or Body of Individuals wholly or substantially funded or controlled by the State Government.

Procedure to be followed for appointment:

Appointment by the State Government.

Tenure to be Applicable:

As decided by the State Government.

Note: Service in any of these posts shall count towards Cooling Off provided that posts mentioned in (iv) and (v) shall count towards Cooling off only if they are located within the State.

3. Rule 6(2) (ii)

"A Cadre officer may also be deputed for service under an international organization, an autonomous body not controlled by the Government, or a private body, by the Central Government in consultation with the State Government on whose cadre she/he is borne."

3.1

Deputation under Rule 6(2)(ii) to International Organizations.

Posts that are to be covered:

(i)

UN Organizations.

(ii)

International Financial Institutions like World Bank, IMF, ADB, etc.

(iii)

Multilateral organizations of which India is a member, like IAEA, WTO, Commonwealth Organization, International Court of Justice, SAARC etc.

(iv)

Bilateral Bodies set up under the Vienna Convention, i.e. Embassies and Bodies set up under them, like USAID, DFID, NORAD, etc.

(v)

International NGOs or Funding Organizations from which India receives technical/financial assistance like International Red Cross Society, Action Aid, Aga Khan Foundation, Ford Foundation, etc.

Procedure to be followed for appointment:

With the approval of the Committee under the chairmanship of the Cabinet Secretary comprising Secretary (P) and Finance Secretary (with PM's approval for JS and above);

Provided that for appointment to posts listed at (iv), the Foreign Secretary or the MEA Secretary concerned shall also be

a member of the Committee.

Provided further that for appointments to posts listed at (v), the concurrence of MHA shall be taken.

Tenure to be applicable:

Maximum of 5 years at a stretch.

Note: All other conditions laid down in DOPT Guidelines contained in F.No. 14017/33/2005-AIS (II) (Part I) dated 27/12/2006 and PMO ID dated 01/05/2007 shall be applicable.

3.2

Deputation under Rule 6(2) (ii) to an autonomous body, trust, society, etc. not controlled by the Government, or a private body.

Posts that are to be covered :

(i)

Registered Societies or Trusts or Foundations or non-profit organizations or NGOs or cooperatives;

(ii)

Apex bodies of Industries and Commerce;

Provided that such autonomous or private bodies fulfill all four of the following criteria:

- a. they are functionally autonomous of the Central and State Governments;
- b. they are not substantially funded by the Central and State Governments;
- c. the Central or State Governments do not have powers to give them directions; and
- d. they are not companies registered under the Registration of Companies Act.

Procedure to be followed for appointment:

With the approval of the Committee under the chairmanship of the Cabinet Secretary comprising Secretary (P) and Finance Secretary (with PM's approval for JS and above).

Tenure to be applicable:

Maximum of 5 years at a stretch.

Provided that total period of deputation under all categories under Rule 6(2)(ii) shall not exceed a maximum of 7 years in the entire service.

4. Notwithstanding anything contained above regarding deputation tenures,

- I. absence from the cadre shall not exceed more than 7 years at a stretch for officers below the level of Secretary as a result of intercadre deputation and deputation under Rule 6(2)(ii); and
- II. the total period under inter-cadre deputation and deputation under Rule 6(2)(ii) shall not exceed 10 years in the entire career.

5. There shall be a mandatory "Cooling Off" requirement after every period of deputation under Rules 6(1) and 6(2) (ii). The length of such "Cooling Off" shall be as follows:-

(i)

For JS-level and below-3 years.

(ii)

For AS-level-1 year.

(iii)

For Secretary-level-nil.

6. Officers who are on deputation under Rule 6(2)(ii) would run the disqualification of not being considered for empanelment under the Central Staffing Scheme during the currency of their deputations, and also, till they earn ACRs on return to their cadre [instructions dated 27.12.2006, para 27, shall stand superseded in this respect]

7. The Consolidated Deputation Guidelines for All India Service Officers shall come into force with prospective effect.

8. Appointments for which orders have already been issued shall not be affected by these guidelines.

9. Nothing contained in the above guidelines shall affect or override the special dispensations provided for the North-East and deficit cadres, i.e. Chhatisgarh, Uttarakhand, Sikkim, Nagaland and Manipur-Tripura.

10. Existing detailed orders/rules regarding deputation under Rules 6(1) and 6(2) (ii), tenure and "Cooling Off" requirements, CIFA Rules and empanelment norms may be modified accordingly.

V. Consolidated Deputation Guidelines For All India Services.

I am directed to refer to the above subject and to state that the Consolidated Deputation Guidelines for All India Service officers issued vide this Department's letter of even number dated 28/11/2007 has been reviewed by the Competent

Authority. In this regard the decision taken is hereby conveyed for information and guidance:

1. The proposals for extension of deputation under Rule 6(2)(ii) of the IAS (Cadre) Rules, 1954 will be examined as per the conditions of the new Consolidated Deputation Guidelines.

2. Since the requirement of 'cooling off' is to ensure that an officer does not stay away from his cadre for long stretches at a time, there shall be no objection if an officer on central deputation is permitted deputation under Rule 6(2)(ii) to the limit of approved Central Deputation tenure without cooling off.

3. The above is subject to the overall tenure ceilings under the Consolidated Guidelines.

(Instructions issued vide DOPT's letter no. 14017/33/2005-AIS(II)(Pt.I) dated the 14th March, 2008)

Government of India's Decisions under Rule 9: - 1. One of the objects of the procedure laid down in this rule is to ensure that a non-cadre officer is not appointed to a cadre post, if a suitable cadre officer is available. Thus, while the suitability of an officer included in the Select List for officiation in a cadre post cannot ordinarily be in doubt, the question to be examined in making all appointments to cadre posts is whether a suitable cadre officer is available or not, vide sub-rules (3) and (4). It has, therefore, been decided that even in a case where an officer included in the Select List is appointed in an officiating capacity to a cadre post, the requirements of this rule should be fully complied with.

[G.I., MHA letter No. 9/30/62-AIS(I), dated 31.8.1962.]

2. As the filling of a cadre post by a non-cadre officer is permitted under rule 9, it has been held that it would be within its scope if a non-cadre officer, while holding a non-cadre post in addition discharges the duties and functions of a cadre post. Such arrangements should not, however, last for more than three months.

[G.I. MHA letter No. 6/17/64-AIS-(I), dated 8.4.1965.]

3.1

The Government of India have been advised that while making temporary appointments of Select List officers to cadre posts under rule 9 of the Cadre Rules, the order in which their names appear on the Select List should be followed. Where administrative needs so require, a State Civil Service Officer may be appointed temporarily to a cadre post out of turn for a period not exceeding three months to the extent permitted by rule 9 of the Cadre Rules. If the out of turn officiation of Select List officer exceeds the period of three months it would be incumbent on the part of the Central Government to refuse the continuance of the Select List officer in such temporary officiation, and to require that the post be filled by the Select list officer who is not in order in the Select List. It is also open to the Central Government under rule 9 of the Cadre Rules to give directions for the appointment of a cadre officer to a cadre post in place of , or instead of, a Select List officer.

3.2

It was further being held that no benefit in the matter of seniority, pay and probation will be admissible to a Select List officer appointed to a cadre post out of turn beyond the period of three months from the date of temporary appointment.

[G.I. MHA letter No. 14/51/65-AIS(III) dated 21.2.1966].

4. The Government of India have held that it is ultra vires of the All-India Services Act, 1951, to regulate appointments of non-cadre officers (whether in the Select List or not) in non-cadre posts (whether declared equivalent to a cadre post or not) under Rule 9 of the Cadre Rules. Consequently, there is no question of approval of the Government of India being accorded in the case of a Select List Officer holding a non-cadre post or a post temporarily added to the cadre, under rule 9 of the Cadre Rules.

[G.I., MHA letter No. 15/79/69-AIS(III), dated 17.10.1966.]

Government of India's Instructions under Rule 9: - 1.1. The Government of India have advised the State Governments that they should keep in view the legal position explained in the note appended to the Ministry of Home Affairs letter No. 14/51/65 AIS(II), dated 21-2-1966 regarding the scope of regulation 8 of the I.A.S. (Appointment by Promotion) Regulation, 1955, and rule 9 of the I.A.S. (Cadre) Rules, 1954, while appointing non-cadre officers (Select List officers) to officiate in cadre posts.

1.2

The State Governments have also been advised that while making reference to the Government of India, they should furnish information in the revised proforma, reproduced below:-

Proforma

Part I ? {

|-

| 1. Name of the State

|-

| (b) If so, whether all the officers

placed above him in the Select List are officiating in cadre posts

|

|

|-

| 11. Particulars of the senior most officer in the Junior Scale

of the IAS/IPS in the State

|

|

|-

| 12. Whether there are any officers senior to those in 10 above

who are not holding cadre posts. (Please furnish details in Part

II).

| Sanctioned

| Actual

|}

Part II ? Position of officer in the current select list senior to the officer(s) mentioned in column 2 of Part I

Sl.No.

Name of the officer (arranged in the order of names in the
current select list)

Date from which continuously officiating in cadre post

Designation of the cadre post (Specified in item (1) of the
cadre schedule) held by officer

No. & Date of the GOI's communication approving the
officiation

Departure if any from the order of the names in the current
Select List in making officiation arrangements. Give reasons.

Note - The phrase 'Cadre Post' wherever used in Part I & II of this proforma means senior duty post specified in item 1
of the Cadre strength.

[G.I.,MHA letter No. 6/54/64-AIS(I), dated 26.3.1966.]

2.

1. The Government of India have clarified the scope of Rule 9 of the Cadre Rules as follows:-

(a)

The report under sub-rule (2) of rule 9 of the I.A.S./I.P.S. (Cadre) Rules, 1954, is to be made when a non-cadre officer is appointed to a cadre post for a period exceeding three months, i.e., the period may be six months or more than six months, but it should exceed three months. The period exceeding 6 months has, therefore, no relevance whatsoever to the report to be made under sub-rule 2 of rule 9 of the Cadre Rules. The report under the said sub-rule may not be made only once in all cases but it may be made subsequently every time, if it is proposed by the State Government to further extend the initial period of the appointment exceeding three months.

(b)

Sub-rule (3) of the I.A.S./I.P.S. (Cadre) Rules, 1954, is self-contained and independent of the provisions contained in sub-rules (1), (2) and (4) of the said rule. Sub-rule (3) of rule 9 of the Cadre Rules empowers the Central Government to give directions to the State Government at any time to terminate the temporary appointment of a non-cadre officer to a cadre post, even without any report from the State Government whether the period is less than three months or more than six months. The words " or otherwise " occurring in sub-rule (3) of rule 9 of the Cadre Rules are of great significance in this context and leave no scope for doubt.

(c)

Sub rule (4) of rule 9 of the Cadre Rules does not place any restriction on the aforesaid powers of the Central Government under sub-rule (3) of rule 9 . The matter is to be referred to the Union Public Service Commission when the Central Government comes to the conclusion that no suitable cadre officer is available for filling the cadre post in

question and does not want to terminate the appointment of the non-cadre officer under sub-rule (3) of the said Rules. Suitable directions are then issued by the Central Government to the State Government Concerned in the light of the advice given by the Union Public Service Commission. Such directions may contemplate termination of appointment of the non-cadre officer on availability of a suitable cadre officer or after a specified period or may stipulate other conditions. Again the arrangement contemplated by the directions may be terminated by the Central Government at any time under the powers vested in it by sub-rule (3) of rule 9 of the Cadre Rules.

(d)

According to rule 8 read with rule 9, of the IAS/IPS (Cadre) Rules, 1954, a non-cadre officer has to be replaced by a suitable cadre officer as soon as one becomes available. The appointment of non-cadre officer (Select List Officer etc.) to hold the cadre post as a stop gap arrangement pending availability of a suitable cadre officer does not give him any right to continue to hold the cadre post even after a suitable cadre officer becomes available.

(e)

The inclusion of the name of a State Civil Service officer in the Select List does not confer any right on him, nor does he become a promoted officer merely by virtue of such inclusion. Appointment of non-cadre officers (Select List Officer) to cadre posts under rule 9 of the Cadre Rules is a purely temporary arrangement which may be terminated at any time when the Central Government or the State Government or the State Government concerned finds that suitable cadre officers have become available. The Select List officers cannot be equated with the direct recruits who are members of the service and are entitled to hold senior posts.

2.2

The State Government have been advised to keep the above instructions in view while sending reports/proposals under rule 9 of the cadre Rules to the Government of India.

[G.I., MHA letter No. 1/1/67-AIS(III), dated 11.1.1967.]

Government of India's Decision under Rule 10: - 1.1. Instances have come to the notice of the Government of India in which State Government kept in abeyance I.A.S. cadre posts under their control, under this rule and simultaneously created, in lieu, ex-cadre posts involving identical duties and responsibilities but carrying remuneration different from (generally above) that laid down for the corresponding cadre posts.

1.2

The Government of India are of the view that, as a general rule, action of this nature not only has the effect of altering the structure of the State I.A.S. cadre concerned, but also tends to defeat more than one object embodied in the All India Services Rules. The rules do not necessarily require the appointment of a cadre officer to an ex-cadre post of this type. The appointment of a non-cadre officer to what should really be a cadre post would be open to obvious objection; but so also would the appointment of a cadre officer to an ex-cadre post which, by the very nature of duties and responsibilities involved, should actually be a cadre post. The holding in abeyance of certain cadre posts, and their substitution by ex-cadre posts carrying different scales of rates or pay as well as status would thus result in an artificial exclusion of certain posts from the cadre. Such appointments generally mean a departure from the Pay Rules, and result in a distortion of the cadre structure. In certain circumstances, there may well be reason to consider, the upgrading of a cadre post from the senior time-scale to super time-scale on account of enhanced responsibilities. The proper course to adopt, in such cases, would, however, be for the State Government to justify the upgrading of the post in question and make appropriate proposals to the Central Government for a revision of the State Cadre Schedule. In considering such proposals, the need for maintaining a broad measure of all-India uniformity would, no doubt, have to be borne in mind.

1.3

Under this rule, the State Governments are required to make a report to the Central Government in all cases in which the State Government propose to keep a cadre post vacant for a period exceeding six months. The rule also lays down the various particulars which are required to be furnished to the Central Government in such reports. The purpose of the rule is to ensure that there is adequate justification for the extension of such extraordinary arrangement beyond a period of six months and its spirit is generally to discourage their indefinite continuance. The rule, as at present worded, leaves it to the State Government to hold cadre posts in abeyance when required. The corresponding arrangements in the case of the ex-Secretary of State's Services was different. The then Provincial Governments were advised by the late Home Department that, although it was correct that Provincial Governments had power to create posts and to fix the pay thereof, it was never intended that the provisions of the Reserve Posts (I.C.C.S.) Rules should be used in conjunction with those powers to alter the construction of the cadre of a Service sanctioned by the Secretary of State. They were

also advised that the holding in abeyance of a 'reserved post' and the substitution for it of a superior 'unreserved post' would render nugatory the relevant provisions of the Act of 1935 relating to All-India Services, created by the Secretary of State. It was therefore, enjoined on the Provincial Governments that Secretary of State's sanction would be necessary to the holding in abeyance of a reserved post and creation in its place of a temporary post different in status.

1.4

The general considerations relating to the organisation and working of All India Services broadly continue to be the same. A suggestion has, therefore, been made that a provision be added in this rule to the effect that cadre posts shall not be kept vacant or held in abeyance for periods exceeding six months without the approval of the Central Government. Such an amendment would not only be justified on the basis of past precedent, but on the requirements of the present situation as well, and above all, on account of the need for maintaining the all-India character of the I.A.S. In fact, it has always been the intention that the holding of cadre posts in abeyance should be resorted to only in exceptional circumstances, and although this rule does not specifically provide for the Central Government's approval to the continued holding in abeyance of a cadre post for period exceeding six months, the spirit of the rule, no doubt, is to discourage the practice and to ensure that in every case in which it is resorted to, the action is fully justified on the basis of various important consideration of which some find mention in these rules itself.

1.5

The Government of India is of the view that it would be quite inappropriate to hold a cadre post in abeyance and simultaneously to create in lieu an ex-cadre post involving identical duties and responsibilities, but with a different status and pay attached to it. However, they do not wish to suggest the addition of a provision of this rule on the lines indicated above, and trust that the State Governments would agree to act according to the views expressed in the preceding paragraphs and to the spirit of this rule, thereby obviating the need for any formal amplification of the rule in the manner proposed.

1.6

It is also observed that instances of cadre officers holding ex-cadre posts, and of non-cadre officers holding cadre posts generally tend to be large in number. The Government of India are of the view that this is not a satisfactory position and the State Governments might as a matter of general policy employ cadre officers as far as possible on cadre posts.

[G.I. M.H.A. letter No. 6/43/62-AIS(I), dated 2.9.1963.]

Government of India's Decisions under Rule 11: - 1.1. The term 'equivalent post' includes a post in a body, incorporated or not, which is wholly or substantially owned by the Government i.e., a post of foreign service, in view of the provisions contained in sub-rules (2) and (3) of rule 9 of the Pay Rules. Thus the provisions of rule 11 of the Cadre Rules are attracted where a cadre officer holds a cadre post and a post on foreign service simultaneously.

1.2

Combination of Government service with foreign service in one officer, is, however, not desirable and should be resorted to only in exceptional circumstances.

[G.I. M.H.A. letter No. 5/2/65-AIS(I), dated 30.4.1965.]

inserted vide DP&T No. 11033/05/2003-AISII, dated 24.08.2006.

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